

File No.: EXP202201472 (PS/00014/2023)

IMI Reference: A56ID 364449 – A60DD 491509 - Case Register 489448

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on January 14, 2021, with the data protection authority of Hamburg (Germany). The complaint is directed against VACACIONES EDREAMS, S.L. with NIF B61965778 (hereinafter, EDREAMS). The reasons for the complaint are as follows:

The complainant, through a representative, requested access to their data stored by EDREAMS. This access was denied, indicating that they should contact the corresponding telephone service to obtain access to the information. Subsequently, the representative of the complainant insisted on receiving a written response but did not receive any reply to this request (apart from a standard response indicating that the request had been received).

Along with the complaint, the following documents are provided:

- Copy of a letter that the complainant indicates was sent to A.A.A., from the email address of B.B.B., (...) of the complainant, sent on November 16, 2020, in which their representative requests access to the complainant's data in accordance with Article 15 (1) of the General Data Protection Regulation (hereinafter, GDPR). They request that the information be received in electronic format, just as it was requested electronically.
- Printout of an email sent from A.A.A., dated November 17, 2020, with the subject “***SUBJECT.1” to the email of B.B.B., in which it is indicated that, to address their request, they should contact the corresponding customer service department by phone, and the phone numbers for Germany, Switzerland, and Austria are provided.
- Copy of a letter that the complainant indicates was sent to A.A.A. on November 19, 2020, in which their representative thanks for the response of November 17, 2020, but requests a written response to the letter sent by email on November 16, 2020, and indicates that contacting by phone to receive this information is not the appropriate way to do so.

SECOND: Through the “Internal Market Information System” (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on February 4, 2022, and was registered with the Spanish Agency for Data Protection (AEPD) on February 7, 2022. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that EDREAMS has its registered office and main establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an “interested supervisory authority,” in addition to the data protection authority of Hamburg (Germany), the authorities of Baden-Württemberg and Berlin (Germany), and that of France. All of them by virtue of Article 4.22 of the GDPR, given that the individuals residing in the territory of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On March 4, 2022, in accordance with Article 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: On June 7, 2022, the AEPD requested, through the IMI System, additional information from

the data protection authority of Hamburg (Germany) regarding the matter, specifically, the emails sent by the complainant to EDREAMS.

The data protection authority of Hamburg (Germany) shared the following documentation through IMI on June 10, 2022:

- Email sent by the complainant to EDREAMS dated November 16, 2020.
- Email sent by the complainant to EDREAMS dated November 19, 2020.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

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On June 8, 2022, a printout of the privacy policy published on the websites opodo.es and opodo.de was obtained, from which the following information was gathered, among others:

1. The data controller is Vacaciones eDreams S.L.

On June 9, 2022, a written response to a request for information was received at the AEPD, submitted on behalf of EDREAMS, with entry registration number ***REGISTRO.1, in which the following information is provided:

2. Indication that, since the claimant did not provide an email address, they searched for the claimant in their customer reservation database but were unable to find them after conducting the following searches:

- By the claimant's first and last name (A.A.A.), no results were found.
- By the claimant's last name (A.A.A.), 8 results were found, but none with the first name A.A.A.
- By the first and last name of the claimant's representative (C.C.C.), no results were found.
- Within the inbox A.A.A., they were unable to conduct the search for the request because their system does not allow searches without knowing the email address that sent the request.

3. Request for the claimant to provide the email address used to make the reservation in order to investigate the case.

On July 6, 2022, a response from SA Hamburg to the AEPD's request for information was obtained through the IMI system, which provided, among others, the following information:

4. Indication that the request to exercise rights under Article 15 of the GDPR on behalf of the claimant was submitted on November 16, 2020, and was sent from the email address ***EMAIL.2.

5. Indication that the claimant provided the reservation number from 2019 “***RESERVA.1.”

On October 11, 2022, a request for information was notified to EDREAMS providing the information about the email and reservation number provided by SA Hamburg. On October 21, 2022, a written response to this request for information was received at the AEPD, submitted on behalf of EDREAMS, with entry registration number ***REGISTRO.2, in which the following information is provided, among others:

6. Link to the privacy policy (in Spanish and German, published on web.archive.org on September 25, 2020) which states that it was in effect at the time the right was exercised, within which there is, among others, the following information:

- The last update of this policy was in June 2019.

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- The Spanish version states the following: “You can access some of your data and update it through your account settings or Customer Service.

...

To exercise your rights, click here or send your request by postal mail to the following address: Data Protection – Calle Bailén, 67, 08009 Barcelona, Spain, European Union. In your request, you must clearly indicate your identity, specifying your full name and the email address you used to make the purchase or create an account, and the rights you wish to exercise. We will respond as soon as possible, within a maximum period of one month after receiving your validated request, unless we need more time to process your request, in which case we will inform you. Please note that we may ask you to verify your identity and your request before taking any action regarding that request. You can also contact the Spanish Data Protection Agency (<https://www.aepd.es/>) or other applicable supervisory bodies, if you wish. The exercise of these rights is free unless you make unjustified or excessive use of it. In such case, we will have the right to charge you a reasonable amount based on administrative costs.”

- The German version states the following: “You can access some of your data through your account settings or Customer Service and update it.

...

To exercise your rights, please click here or send your request by postal mail to the following address: Data Protection – Calle Bailén, 67, 08009 Barcelona, Spain, European Union. In your request, you must clearly state your personal identity, with your full name and the email address you used to book or create an account.”

[Unofficial translation: “You can access some of your data regarding your account settings or after-sales service and update it.

...

To exercise your rights, click here or send your request by letter to the following address: Data Protection — Calle Bailén, 67, 08009 Barcelona, Spain, European Union. In your request, you must clearly indicate your personal identity, with your full name and the email address you used to book or create an account.”]

7. The following indications, among others, regarding the Prime subscription of the claimant:

“Upon receiving the necessary information to process this information request from this Agency (with the case and the necessary identifying data of (...), on October 6, 2022 (registration number ***REGISTRO.3), we immediately verified that (...) purchased with EDREAMS through the Opodo Germany website on May 14, 2019, and through which they registered for the Prime service (EDREAMS subscription program) paying 74.99 EUR with the purchase of their reservation and obtaining an immediate discount of -59.70 EUR on their trip (see image 1 and Annex 2 - Copy of the Contract or user license that the claimant had to accept to register for their service).

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One year later, on May 14, 2020, the renewal of the Prime service was charged as it is an annual subscription service. On June 26, 2020, the husband of (...) contacted EDREAMS by phone inquiring about his Prime account, and we responded via email (...) with the relevant instructions (see image 2). One year later (i.e., on May 14, 2021), the annual payment for his Prime subscription was charged again, and (...) requested a refund of the charge on June 10, 2021, and on that same day (June 10, 2021), his Prime subscription was canceled and the annual amount paid for it was refunded.

8. Screenshot of the “Prime” membership data of the claimant, which includes the claimant's first and last name, an email address, payment details (including first name, last name, phone number, and email address of the payer), and billing information (including the name “***BUFETE.1”, address, city, email address, tax identification number, postal code, and country).

9. Prime conditions as of May 14, 2019 (in its original language, German, and translated into Spanish), which includes, among other information regarding the cancellation of the service:

“You can also cancel your Opodo Prime membership at any time, except before the expiration of the corresponding membership period. However, the membership fee will not be refunded in the event of termination (unless you exercise your right of cancellation in accordance with Article 4 of the Terms of Use).

4. Right of withdrawal

You have the right to withdraw from this contract within fourteen days without giving any reason. The withdrawal period is fourteen days from the day of the conclusion of the contract.”

10. Indication that, on the date the claimant states that they sent the letter with their access request, the company's situation at that time does not allow them to currently verify the receipt of the request, and this is expressed in the following terms:

“Finally, until this Agency on October 6, 2022, did not provide us with the identifying data of the email of (...), we could not effectively respond to your exercise of the right of access. We respond in more detail to this issue in the seventh question.

Regarding the receipt of that letter in our offices, due to the fact that at the time it was sent we were highly affected by the situation arising from the pandemic caused by Covid-19, not only due to the high volume of claims we received by postal mail but also because our offices were operating with minimal staff and they were in a situation of ERTE due to the terrible economic consequences for the tourism sector, we have been unable to verify its receipt. Likewise, and trusting in the good faith of (...), we understand that the letter was sent correctly on that date although, regardless of that, due to the lack of essential information for...

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the ability to identify (...), the right of access could not have been made effective.”

11. Indication that staff awareness and training regarding the collection of postal mail has been carried out, and that their internal guide on postal mail management has been reviewed. A copy of part of the guide for the management of postal mail related to the management of personal data protection matters is provided.

12. Copy in English of the Internal Guide on the Exercise of the Right of Access. This guide indicates how to address the exercises of rights from the confirmation of the identity of the requester to the response that must be given, including a response template for the exercises of rights.

13. Copy of the response template for exercises of rights in English.

14. Indication that a response was sent to the complaining party on October 17, 2022. A copy of the response in German and a translation of that same response in Spanish is provided. This response includes the information they have in their systems regarding the email ***EMAIL.3 and the reservation number ***RESERVA.1; this information includes, among other things, the following:

- there is no information in their systems regarding the email address ***EMAIL.3.
- data related to the reservation with number ***RESERVA.1 is provided, including, among others: first and last name of the complaining party (as passenger), email (which is ***EMAIL.4), phone number, name and last name of the payer, and payment details (indication that payment is made by credit card, name of the cardholder, last four digits of the credit card, and expiration date). Information is also provided regarding the following aspects: the purposes of data processing; categories of data; recipients of the data; the expected duration of data storage; information on the exercise of rights of opposition, rectification, deletion, or limitation of processing and the right to lodge a complaint with the competent supervisory authority; the origin of the data; information on automated decisions and profiling; and information on data transfers to third countries and the guarantees of data transmissions.

15. Indication that, to avoid similar incidents, EDREAMS, in its privacy notice, indicates as a means to request the exercise of rights a web form that allows the management of the exercises of rights; this web form was managed with a generic tool and, in recent months, has been migrated to a specialized privacy tool. Furthermore, it is indicated that “EDREAMS has processes, tools, training materials, and other appropriate measures already accredited in which it is contemplated that the hypothetical

exercise of rights cannot be denied simply because it is exercised through channels other than the official channel.”

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On November 2, 2022, SA Hamburgo sends a document to the AEPD through the IMI system, in which the following information is provided, among others:

16. A copy of an email received by the complainant, dated October 20, 2022, in which a response is sent on behalf of EDREAMS to the complainant, similar to the one that EDREAMS indicated it had sent to the complainant in its submission to the AEPD on October 21, 2022.

17. A translation into English of the complainant's response to the person at EDREAMS who sent the response to the complainant, with the following content:

“I am sorry to have to come back to this matter. Please find enclosed the message sent by Opodo, Spain, to my wife's mobile phone number.

On the basis of the information provided, which in terms of both content and form does not constitute any sort of competent and intelligent response, the request for information on this page cannot be considered to have been fulfilled.

The information is provided for the e-mail address ***EMAIL.3. On the one hand, this e-mail address does not exist and did not exist in the past. Secondly, the e-mail address that actually exists is the e-mail address of my secretary's office. The request for information in accordance with the GDPR was made via this address. However, it is not the address for which information was requested. The relevant e-mail address of my client is ***EMAIL.4. Furthermore, it confirms the subscription to a Prime annual subscription in the name of A.A.A.. This subscription, however, does not show up in the further information contained therein.

In particular, no customer number is repeatedly provided, although it must exist. With regard to the cancellation of such a subscription, Opodo allegedly requires a customer number as a prerequisite for cancellation.

In the name and on behalf of my client, I am politely asked to follow up on the request for information. It is remarkable with what callousness companies can move unchanged despite the validity of the GDPR.

Thank you very much in advance for your effort.”

Unofficial translation:

“I am sorry to have to come back to this matter. Please find enclosed the message sent by Opodo, Spain, to my wife's mobile phone number.

On the basis of the information provided, which in terms of content and form does not constitute any sort of competent and intelligent response, the request for information on this page cannot be considered fulfilled.

The information is provided for the e-mail address ***EMAIL.3. On the one hand, this e-mail address does not exist and did not exist in the past. Secondly, the e-mail address that actually exists is the e-mail address of my secretary's office. The request for information in accordance with the GDPR was made via this address. However, it is not the address for which information was requested. The relevant e-mail address of my client is ***EMAIL.4. Furthermore, it confirms the subscription to a Prime annual subscription at C/ Jorge Juan, 6

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name of A.A.A. This subscription, however, does not appear in the additional information contained therein.

In particular, no customer number is repeatedly provided, although one must exist.

Regarding the cancellation of said subscription, Opodo allegedly requires a customer number as a

prerequisite for cancellation.

On behalf and representation of my client, I am kindly asked to follow up on the request for information. It is noteworthy that insensitive companies may continue unchanged despite the validity of the GDPR. Thank you very much in advance for your effort.”

CONCLUSIONS

- ☐ The claimant provides a copy of two letters: one in which they request the right of access and another in which they respond that they wish to receive the answer in writing, not by phone.
- ☐ The claimant provides a printout of an email dated November 17, 2020, with the subject “***SUBJECT.1” in which they are instructed to contact the corresponding customer service department's phone number, and the phone numbers for Germany, Switzerland, and Austria are provided.
- ☐ EDREAMS indicates that it has no record of receiving the exercise of the right of access presented by the claimant in their complaint. It states that on the dates when the claimant indicates that they requested access, the management of received letters may have been deficient due to the situation caused by the COVID-19 pandemic.
- ☐ In the privacy policy published around the time the claimant indicates that the request for the exercise of the right of access was made, the following means were offered to request the exercise of data protection rights from the website ***URL.1: a web form, and postal mail to the address “Datenschutz – Calle Bailén, 67, 08009 Barcelona, Spanien, Europäische Union.”
- ☐ In the Prime conditions, it is not indicated what identification method is necessary to unsubscribe from the Prime subscription.
- ☐ EDREAMS indicates that the claimant's Prime subscription was canceled on June 10, 2021.
- ☐ Among the personal data provided by EDREAMS regarding the claimant's Prime subscription are the claimant's first and last name, an email address, and payment details (which include the first name, last name, phone number, and email address of the payer).
- ☐ Among the data of the claimant's Prime subscription provided by EDREAMS are billing details corresponding to the entity “***FIRM.1” which include the name “***FIRM.1,” address, city, email address, tax identification number, postal code, and country.
- ☐ On October 20, 2022, the claimant received an email on behalf of EDREAMS in which the following information is provided:
 - ☐ there is no information in their systems about the email address ***EMAIL.3.

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- ☐ The data related to the reservation with number ***RESERVA.1 is provided, including, among others: the name and surname of the claiming party (as passenger), email address (which is ***EMAIL.4), phone number, name and surname of the payer, and payment details (indication that payment is made by credit card, name of the cardholder, last four digits of the credit card, and expiration date).
- ☐ Information related to this reservation is also provided regarding the issues requested by the claiming party in the letter mentioned in their claim sent to A.A.A. on November 10, 2020: the purposes of data processing; the categories of data; the recipients of the data; the expected duration of data storage; information on the exercise of rights of objection, rectification, deletion, or limitation of processing and the right to lodge a complaint with the competent supervisory authority; the origin of the data; information on automated decisions and profiling; and information on data transfers to third countries and the guarantees of data transmissions.
- ☐ The personal data regarding the claiming party's Prime account provided by EDREAMS in its writings is a subset of the data from the reservation with number ***RESERVA.1, which EDREAMS sent to the claiming party in the email dated October 20, 2022.
- ☐ The claiming party indicates that they are not satisfied with the response given by EDREAMS because the information requested was about the email ***EMAIL.4, and not that of the secretary; and

indicates that among the missing data is the customer number, which is requested to cancel the subscription.

□ After conducting these investigative actions, it has not been possible to verify the existence of a customer number or Prime member number or any other identifier specific to the claiming party's Prime subscription.

SIXTH: According to the report collected from the AXESOR tool, the entity VACACIONES EDREAMS, S.L. is a large company established in 1999, with a turnover of XXXXXXXXXX euros in 2022.

SEVENTH: On February 28, 2023, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on 03/06/2023, this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the LOPDGDD.

Within the timeframe for this purpose, the interested supervisory authorities did not submit relevant and justified objections, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of section 6 of Article 60 of the GDPR.

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This draft decision was notified to EDREAMS in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) on the date 1/03/2023, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: On April 21, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against EDREAMS, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR, in which it was indicated that EDREAMS had a period of ten days to submit allegations.

This initiation agreement, which was notified to EDREAMS in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on April 21, 2023, as evidenced by the acknowledgment of receipt in the file.

NINTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent party submitted a written statement in which, in summary, it stated that EDREAMS maintained a procedure for addressing the exercise of rights, which ultimately, on October 17, 2022, addressed the request for the exercise of the right of access made by the complainant, that it continuously improves its processes for addressing requests for the exercise of rights made by its clients, and finally, it made a series of allegations regarding the suitability, proportionality, and graduation of the sanction.

TENTH: On September 22, 2023, the instructing body of the sanctioning procedure formulated a resolution proposal, in which it proposes that the Director of the AEPD sanction EDREAMS, with NIF B61965778, for an infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €10,000 (ten thousand euros).

This resolution proposal, which was notified to EDREAMS in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on September 29, 2023, as evidenced by the acknowledgment of receipt in the file.

ELEVENTH: On October 2, 2023, EDREAMS submitted a written request for an extension of the deadline to present allegations.

TWELFTH: On October 3, 2023, the instructing body of the procedure agreed to extend the requested deadline by a maximum of five days, in accordance with the provisions of Article 32.1 of the LPACAP. The aforementioned agreement was notified to EDREAMS on October 4, 2023, as evidenced by the

acknowledgment of receipt in the file.

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THIRTEENTH: On October 23, 2023, a written statement from EDREAMS was received by this Agency, in due time and form, in which it presented allegations against the resolution proposal. From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: As evidenced on pages 61 and 62 of the file, on May 14, 2019, the complainant made a purchase with EDREAMS through the Opodo Germany website, registering for the Prime service (EDREAMS subscription program) by paying €74.99 with the purchase of their reservation and obtaining an immediate discount of -€59.70 on their trip. In the image of the payment for the reservation and annual subscription to Prime provided by EDREAMS, it can be seen that the email is ***EMAIL.4.

(...)

One year later, on May 14, 2020, EDREAMS charged for the renewal of the Prime service, as it is an annual subscription service. On June 26, 2020, the complainant's husband contacted EDREAMS by phone inquiring about the Prime account, of which EDREAMS provides the following note in its database:

(...)

SECOND: On November 16, 2020, the complainant sent to A.A.A., from the email (page 17 of the file) of B.B.B. (***EMAIL.2), an employee of the complainant's husband, a message to which a letter dated November 10, 2020, was attached in which their representative requests access to their data in accordance with Article 15 (1) of the General Data Protection Regulation (hereinafter, GDPR). And requests that the information be received in electronic format, just as it has been requested electronically.

The text of the message was as follows:

"Dear Sir or Madam, please open the attached document.

Sincerely,

XXX"

The content of the letter attached to the email is as follows (unofficial translation, original text in German):

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"Dear Sir or Madam:

In the aforementioned matter, I represent the interests of Ms. A.A.A. I refer to the attached power of attorney.

On behalf of my client, I request information in accordance with Article 15 of the GDPR regarding whether you have stored personal data related to my client. With respect to this data stored by you, my client has the right to receive information about it. Therefore, I must ask you to provide me with the following information in accordance with Article 15, paragraph 1, of the GDPR:

- a) What specific data about my client is stored by you, or is being processed (for example, last name, first name, address, date of birth, profession, medical findings, customer number, or similar)?
- b) Additionally, provide information on the purposes for which the data is processed, as well as
- c) the categories of personal data processed concerning my client;
- d) the recipients or categories of recipients who have already received my client's data or will receive it

in the future;

e) the expected duration for storing my client's data or, if this is not possible, the criteria for determining this duration;

f) regarding the existence of my client's rights to rectification, erasure, or restriction of processing of their data, as well as their right to object to such processing in accordance with Article 21 of the GDPR and my client's right to lodge a complaint with the competent supervisory authority.

g) If the data was not collected from my client, I request that you provide me with all available information about the source of the data, as well as

h) indicate whether there is automated decision-making, including profiling, in accordance with Article 22 of the GDPR. In this case, please provide meaningful information about the logic involved and the expected effects of such processing for my client.

i) Additionally, please inform me if my client's personal data has been transferred to a third country or to an international organization.

j) Furthermore, please communicate what appropriate safeguards are provided in accordance with Article 46 of the GDPR in relation to the transfer.

Please provide a copy of the data related to my client stored by you for the attention of my law firm. After this request is made electronically and unless a different arrangement has been made on this side, the information will be made available to me in a commonly used electronic format.

My client expressly reserves the right to assert the right to erasure.

Finally, I would like to point out that, in accordance with Article 12, paragraph 3, of the GDPR, the information must be provided without delay, but no later than within one month. If I do not receive any information from you within this period, I will contact the relevant supervisory authority without further communication. I would like to point out the legal consequences in accordance with Article 83 of the GDPR as a precautionary measure.

Best regards

THIRD: An email received on November 17, 2020, from B.B.B. at email ***EMAIL.2, sent from A.A.A., with the subject "****SUBJECT.1", contains the following content (unofficial translation, original text in German):

"Dear Customer,

Please contact our customer service at the following phone numbers so that we can assist you properly regarding your matter:

from Germany: +XXXXXXXXXX

from Switzerland: +XXXXXXXXXX (normal call charge)

from Austria: +XXXXXXXXXX.

We look forward to hearing from you soon.

Sincerely,

Opodo Customer Service."

FOURTH: On November 19, 2020, the claimant sent a message attaching a letter from the email of B.B.B. (***EMAIL.2) to the email A.A.A., in which their representative thanks for the response of November 17, 2020, but requests a written response to the letter sent by email on November 16, 2020, and indicates that contacting by phone to receive this information is not the appropriate way to do so. The text of the email dated November 19, 2020, is as follows:

"Dear Sir or Madam, please open the attached document.

Sincerely,

XXX"

The content of the letter attached to the email is as follows (unofficial translation, original text in German):

"Dear Sir or Madam,

Thank you very much for your text module dated 17.11.2020.

In this opinion, the letter sent to you by email on 16.11.2020, in which information was requested, must be answered unequivocally and in the context of written information. Contacting you verbally is not appropriate.

We look forward to receiving your information in written form within the established deadline.

Sincerely,

XXX"

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FIFTH: According to EDREAMS, on May 14, 2021, the annual payment for the claimant's Prime subscription was made again, and a refund was requested on June 10, 2021. On that same day (June 10, 2021), the Prime subscription was canceled, and the annual amount paid for it was refunded.

SIXTH: It is recorded in the file a diligence performed by the inspector, signed on June 8, 2022, in which, upon consulting the website "opodo.es/política-de-privacidad/", the following content is verified: (...)

SEVENTH: On June 8, 2022, in response to the information request made by this Agency, EDREAMS states that "we have not been able to find (...) who submitted the aforementioned claim to this Agency, despite following the appropriate protocol. The search consisted of the following methodology:

- a. Search in our systems by first and last name (A.A.A.): which yielded no results.
- b. Search in our systems by last name (XXX): which yielded 8 pages of results, but none of the reservations contain the name A.A.A.
- c. Search in our systems by the first and last name of (...): which yielded no results.
- d. Search in the email inbox of A.A.A. (to which it seems the rights exercise was sent on November 10, 2020): which yielded no results. Due to the configuration of our systems, we can only perform search patterns by date or by email address; since we do not have the latter, we could not carry out that verification.

EIGHTH: On October 21, 2022, in response to the information request made by this Agency, EDREAMS provided:

1. Privacy policy in effect as of November 10, 2020. Within the privacy policy, the last update was in June 2019, which EDREAMS states was in effect at the time of the rights exercise submission (in Spanish and German, published on web.archive.org on September 25, 2020), in which the following information can be read, among others:

- In the Spanish version, the following is indicated: "You can access some of your data and update them through your account settings or Customer Service.

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To exercise your rights, click here or send your request by postal mail to the following address: Data Protection – Calle Bailén, 67, 08009 Barcelona, Spain, European Union. In your request, you must clearly indicate your identity, specifying your full name and the email address you used to make the purchase or create an account, and the rights you wish to exercise.

We will respond as soon as possible, within a maximum period of one month after receiving your validated request, unless we need more time to process your request, in which case we will inform you of this.

Please note that we may ask you to verify your identity and your request before taking any action regarding that request.

You may also contact the Spanish Agency for Data Protection (<https://www.aepd.es/>) or other applicable supervisory bodies, if you wish.

The exercise of these rights is free unless you make unjustified or excessive use of it. In such a case, we will have the right to charge you a reasonable amount based on administrative costs."

Unofficial translation of the German version:

“You can access some of your data regarding your account settings or after-sales service and update them.

...

To exercise your rights, click here or send your request by letter to the following address: Data Protection — Calle Bailén, 67, 08009 Barcelona, Spain, European Union. In your request, you must clearly indicate your personal identity, with your full name and the email address you used to book or create an account.”

2. The terms of use of the Prime subscription service, in which the following can be read:

“3 Duration, payment, and cancellation

3.1 The Opodo Prime membership lasts 12 months from the date of acceptance by Opodo. It applies to reservations made by you during this period.

3.2 We reserve the right to offer free or discounted trial periods to certain customers. By accepting this offer, customers become Prime members and can use the Prime services accordingly during the corresponding period. At the end of this period, the customer becomes a paying member of Prime, unless the Prime membership is terminated prematurely. Customers will be separately informed of the conditions (such as duration and subsequent payment) of the offered trial period.

3.3 The Opodo Prime Membership will be renewed for another 12 months at a time, unless it is canceled by you or by us at least 14 days before the end of the corresponding subscription period. We will notify you of the pending renewal via the email address we have on file one month before the respective subscription period expires. If there are any changes in eligibility requirements, we will request your consent before renewing.

3.4 Payment will always be made in advance or at the beginning of the new subscription period and will be settled with the payment method you have provided to us, unless expressly agreed otherwise with you. Additionally,

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you accept that the above data will be used for the renewal of your Opodo Prime subscription.

If the bank details registered with Opodo Prime have expired, we will ask you to update them or, in that case, we will use the payment details you provided when making a reservation on our website in relation to the renewal of your membership, provided you have consented to their storage.

3. According to the Prime conditions as of May 14, 2019 (in its original language, German, and translated into Spanish), the following information regarding the cancellation of the service is obtained: You can also cancel your Opodo Prime membership at any time, except before the expiration of the corresponding membership period. However, the membership fee will not be refunded in the event of termination (unless you exercise your right of cancellation in accordance with Article 4 of the Terms of Use).

4. Right of withdrawal

You have the right to terminate this contract within fourteen days without stating a reason. The withdrawal period is fourteen days from the day of the conclusion of the contract.”

4. The membership data for "Prime" of the claimant is provided, including the claimant's first and last name, an email address, payment details (which include the first name, last name, phone number, and email address of the payer), and billing information (which includes the name "****BUFETE.1", address, city, email address, tax identification number, postal code, and country).

(...)

5. A copy in English of the Internal Guide on the exercise of the right of access is provided. This guide indicates how to handle the exercises of rights from the confirmation of the identity of the applicant to what response should be given, including a template for responding to rights exercises.

6. Copy of the template for responding to rights exercises in English:

(...)

NINTH: On October 17, 2022, EDREAMS, from the email ***EMAIL.3, sent the following message to

the claimant's email ***EMAIL.4 (unofficial translation from the original in German):

"Dear Ms. A.A.A.:

First of all, thank you for contacting the Data Protection Department of eDreams ODIGEO. Your trust is very important to us, and we are equally committed to protecting the privacy and security of our customers' personal data.

On October 6, 2022, we received a request to exercise your data protection rights of access, recognized in Articles 13 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (GDPR), as well as in Articles 11 and following of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD) from the Spanish Agency for Data Protection (AEPD).

We would also like to emphasize that we have searched our systems, and unless we are mistaken, we have not found the two letters attached to your submission to the AEPD that you indicate were sent by your lawyer. We have also not found any request for access to your data from you through the privacy form on our website, and thus, eDreams ODIGEO has been unable to respond to your request until today.

We would like to remind you that, to exercise your rights regarding the protection of your data, you can submit the request through the form available in the Privacy Notice on our website, which is fully accessible and designed to facilitate the exercise of our customers' rights.

That said, we attach a copy of the confirmation email for reservation no. ***RESERVA.1, in which the start of the membership for the annual Opodo Prime subscription in the name of A.A.A. was also confirmed. This email was sent after the purchase, on May 14, 2019 (14:52h), to the provided email address: ***EMAIL.4.

Thus, in reference to your request to exercise your right of access, eDreams ODIGEO responds to the questions raised by your lawyer that we received in the attached document from the AEPD:

a) What specific consumer data is stored or processed (For example: Name, Surname, Address, Date of Birth, Occupation, Customer Number, etc.)?

The personal data is mentioned in the data file which includes identification data (for example, full name, username, internal identifier...), contact (for example, email address, physical address, phone number), computer and connection device (for example, IP address), communication (for example, phone records, voicemail, email), transaction data (for example, payment details for our acquired services, credit card details), and booking data (for example, your trip).

In your case, we have not found any information in our systems related to the email address ***EMAIL.3.

Regarding the booking locator no. ***RESERVA.1, associated with the email address ***EMAIL.3 (provided at the time of purchase), we have the following information:

Type of Data

Reservation Reference ***RESERVA.1

Reservation Date ***FECHA.1

Website ***URL.1

IP ***IP.1

Full Name of the Buyer B.B.B.

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Email ***EMAIL.3

Postal address

***DIRECCIÓN.1

Phone number ***TELÉFONO.1

Full names of passengers

B.B.B.

A.A.A.

Payment details

(...)

Flight details

Reservation reference ***REFERENCIA.1

Recipients

1) Airlines operating the flights: KLM Royal Dutch Airlines

2) Reservation and refund management and connection systems:

AMADEUS / IATA BSP-Link

3) Payment entities involved during the payment process of your reservation: CCA

4) Service providers (accommodation, communication services, fraud and security services, etc.).

*** Note: Credit card data is only shared between BBVA and us.

b) Purposes of data processing.

We process your data for the following purposes: reservation (or accepted or contracted services), communications (for example, to send you necessary or commercial communications; please remember that you can opt out of receiving any commercial communication via the unsubscribe option at the footer of any commercial communication), when we promote a secure and trustworthy service (for example, when we analyze fraudulent attacks on our websites or systems) and improve our services (in which case we will strive to use pseudonymous or anonymous data for such purposes) or for legal purposes (for example, to respond to claims or requests from you, such as the present one). For more information about our objectives, please refer to section 4 ("Why do we collect your personal data and on what legal basis do we rely?") of our Privacy Notice.

c) Categories of personal data.

The categories are mentioned in the data file and in response to question a).

d) Recipients or categories of recipients of the data.

In addition to the main categories of travel partners and service providers mentioned in the data file, we centralize our technological and management services internally through the International Network eDreams, SLU of our group of companies, located in Spain (European Union).

Other categories of recipients are mentioned in section 6 ("Who will be the recipients of your personal data?") of our Privacy Notice on our websites and application:

- Service providers: to provide you with our services, we need to share your data with third parties. We specify and contractually regulate the transfer.

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or the processing of data when required by law, with appropriate security measures.

- Our group companies: We share your data within our group companies for internal purposes related to the centralization of administration.

- Competent authorities: We may disclose your data to law enforcement authorities when required by law or when strictly necessary for the prevention, detection, or prosecution of crimes or fraud, or when the law obliges us to do so, as the data controller.

- Others: These recipients may be located outside the EEA, which implies international data transfers. We address the issue of international data transfers in response to question j).

e) The expected duration of data storage or, if this is not possible, the criteria for determining this duration.

The standard storage period is a maximum of 5 years after the conclusion of your contract (reservation) with us, taking into account the main legal provisions related to a possible challenge to the reservation itself, travel, our services, and administrative, accounting, and tax obligations.

f) The existence of consumer rights regarding the correction, deletion, or restriction of the processing of your data, as well as your right to object to such processing, in accordance with Article 21 of the GDPR, and the right to complain to the competent authority.

There is no record that the subject has ever exercised the right to rectification, deletion, or restriction.

Of course, you can exercise your rights at any time using our data protection form, as mentioned in our Privacy Notice.

There is no prior objection right ever exercised by the subject. Of course, you can exercise your rights at any time using our data protection form, as mentioned in our Privacy Notice.

Regarding your right to complain to the competent supervisory authority, we inform you that any interested party has the right to lodge a complaint with the relevant supervisory authority, particularly in the Member State of their residence, and the right to an effective judicial remedy in accordance with Article 47 of the Charter, if the interested party considers that their rights under this Regulation are being infringed or if the supervisory authority does not address a complaint: rejects or dismisses a complaint in whole or in part, or fails to act when necessary to protect the rights of the interested party. The investigation following a complaint must be carried out to the extent appropriate in the specific case, without prejudice to judicial review. The supervisory authority must inform the interested party of the progress and outcome of the complaint within a reasonable timeframe and, if the case requires further investigation or coordination with another supervisory authority, provisional information must be provided to the interested party.

To facilitate the submission of complaints, each supervisory authority must take measures such as providing a complaint form that can also be filled out electronically, without excluding other means of communication.

g) Origin of the data.

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There are different origins from which the data may come, mainly from "data you provide to us" and "data we collect from you." The following categories of data refer to an individual (the categories are not exclusive; data may cross multiple categories):

- Identification and contact data: Data you provide to us, used to identify you as a natural person and/or data we use to contact you.
- Account and settings data: "Data you provide to us." Data you generate by using your account.
- Payment data: "Data you share with us." Data you provide to us to make the payment.
- Travel-related data: "Data you share with us." The data you have provided during the booking process, everything you select in the order form, and everything you modify or acquire later as a complement to the original order.
- Communication data: "Data you provide to us" and "Data we collect from you." Data from all text and voice communications exchanged between you and us regarding your requests.
- Browsing and device data: "Data we collect from you." Data we may automatically collect from your device when you visit our Platforms.

h) Information about the logic involved, the scope, and the intended impact when an automated decision is made (including profiling).

We do not make automated decisions based on profiling beyond the legitimate interest of fraud prevention and the personalization of your user experience, marketing, and advertising.

In any case, such automated decision will not have legal effects nor will it materially affect you in a similar manner.

In the event that we make an automated decision, we will take all appropriate measures and inform you.

i) If consumer data was sent to a third country or another international organization.

j) The appropriate safeguards in accordance with Article 46 regarding the transfer of data.

As explained in our Privacy Notice, our servers are located in the European Union. However, to facilitate our global operations (i.e., through service providers), the transfer of your data to the recipients described above may involve the transfer of your data to third countries whose data protection laws may not be as comprehensive as those of the countries in the European Union.

In this regard, both the travel sector and the online services sector require the international transfer of

data. For example, intermediary providers, such as global distribution systems (which manage online bookings for airlines), are located worldwide, and some have their systems in cloud computing. When the exceptions to Article 49 of the GDPR (in particular those set out in subsections (b) and (c)) do not apply, we follow Article 46 of the GDPR.

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As you may know, the Court of Justice of the European Union in the Schrems II case had an impact on how companies handle international data transfers. The U.S. Privacy Shield has been invalidated, and standard contractual clauses are considered valid, provided they also include appropriate additional safeguards in certain cases.

We refer to these measures in our data processing agreements (hereinafter referred to as "DPA") along with the standard contractual clauses (hereinafter referred to as "SCC") to mitigate the risks of such international data transfers. Among other things, we require our data processors (hereinafter referred to as "importers") to comply with the following technical and organizational measures (hereinafter referred to as "TOM") applicable to an international data transfer, as well as any other appropriate TOM (in accordance with the recommendations of the European Data Protection Board), and hereby confirm:

- The use of TOM to protect personal data and to safeguard it against eavesdropping in transit and at rest (including attempts at surveillance by public authorities or unauthorized third parties) through the use of appropriate encryption at rest and in transit.
- Robust protection measures for all personal data, including European data, such as an effective and up-to-date policy and a legal team that always carefully reviews each data request from authorities to ensure compliance with applicable legislation, including European law. This includes reviewing the necessity and proportionality of each request, challenging each request, and informing the data controller before sharing such data.
- An updated record of each data request from authorities with relevant information.
- Prior and ongoing assessment of the potential risk of receiving data requests from public authorities and considering that the risk is low.
- Monitoring of any international data processing and the ability to audit.
- Implementing a strict privacy by design solution in the provision of services.
- Ensuring the full exercise of the rights of data subjects.
- Prior and ongoing assessment that the level of data protection in their jurisdiction (including the jurisdictions of subprocessors) is substantially equivalent to the protection guaranteed in the EU by the GDPR in light of the Charter of Fundamental Rights of the EU and/or that data protection risks are low, taking into account the circumstances (with justification from the importer, if applicable). The importer must rely on the characteristics of their tool, the circumstances of the data processing, various reports from different credible organizations analyzing the risks, the assurances of other bodies, etc. (which are "relevant, objective, reliable, verifiable, and publicly available or otherwise accessible") to the "documented practical experience of the importer with relevant previous request instances."
- Designation of a representative in the EU in accordance with Article 27 and 4.17 of the GDPR (if your organization is not located in the EU).

If the importer believes that the international data transfer may not be fully compliant with this DPA, the SCC, or applicable legislation, the importer will immediately implement all measures.

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necessary for such international data transfer to be compliant. If this is not possible, the importer will notify the data controller so that necessary measures can be taken, such as the termination of the

contract.

The importer confirms by signing this DPA that:

- It has not intentionally created backdoors or similar programming that could be used to access the system and/or personal data;
- It has not intentionally established or modified its business processes to facilitate access to personal data or systems;
- National laws or government policies do not require the importer to create or maintain backdoors or facilitate access to personal data or systems, nor that the importer possesses or discloses the data.
- The importer guarantees the application of strict security and data protection policies, based on EU certifications or codes of conduct or international standards (e.g., ISO standards) and best practices (e.g., ENISA), taking into account the state of the art, in accordance with the risk of the categories of personal data processed.

Finally, we remind you that if you wish to access one of your specific reservations, you can usually do so directly from the XXXXXX website by clicking on "Manage my reservation" and entering the required information (email address and reservation number).

We encourage you to read our online Privacy Notice to take other measures if necessary. If you have any other questions or concerns, you can also contact our privacy team using the form provided in our Privacy Notice.

We remain at your disposal for any additional information.

Sincerely,

The DPO Team

eDreams ODIGEO Group

TENTH: On November 2, 2022, the data protection authority of Hamburg sent a letter to the AEPD through the IMI system, which includes an email sent by the complainant on October 20, 2022, to EDREAMS, in response to its email dated October 17, 2022 (Unofficial translation of original in German):

"I regret having to return to this matter. Attached is the message sent by Opodo, Spain, to the mobile phone number of (...).

Based on the information provided, which in terms of content and form does not constitute any kind of competent and intelligent response, the request for information on this page cannot be considered fulfilled.

The information is provided for the email address ***EMAIL.3. On one hand, this email address does not exist and did not exist in the past. Secondly, the email address that actually exists is my secretary's office email address. The request for information in accordance with the GDPR was made through this address. However, it is not the address for which information was requested. The relevant email address of my client is ***EMAIL.4. Furthermore, it confirms the subscription to an annual Prime subscription in the name of A.A.A.. This subscription, however, does not appear in the additional information contained therein.

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In particular, no customer number is repeatedly provided, although one must exist.

Regarding the cancellation of said subscription, Opodo supposedly requires a customer number as a prerequisite for cancellation.

On behalf and representation of my client, I am kindly asked to follow up on the request for information. It is noteworthy that insensitive companies can continue unchanged despite the validity of the GDPR. Thank you very much in advance for your effort."

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there is a processing of personal data, since EDREAMS collects and retains, among others, the following personal data of individuals: name and surname, phone number, and email address, among other processing activities.

EDREAMS carries out this activity in its capacity as data controller, as EDREAMS is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Moreover, it is a cross-border processing, given that EDREAMS is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as provided in its Article 4.23), regarding the competence of the lead supervisory authority, that, without prejudice to the provisions of Article 55, the authority of

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control of the main establishment or the only establishment of the controller or the processor shall be competent to act as the lead supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, EDREAMS has its main establishment in Spain, therefore the Spanish Data Protection Agency is competent to act as the lead supervisory authority.

On its part, Article 15 of the GDPR regulates the Right of access of the data subject.

III

Response to the allegations presented regarding the initiation agreement and the proposed resolution

A) In response to the allegations presented by the defendant entity, the following should be noted:

"FIRST. - ON THE FACTUAL SITUATION"

In this allegation, EDREAMS provides a chronological enumeration of what it considers to be the facts subject to this sanctioning procedure. However, it is in the Established Facts of this document where those that have been conclusively established and that constitute the factual basis of the present case are specified. Without prejudice to what is established in the Established Facts, the following clarifications can be made regarding the account argued by EDREAMS:

- Regarding point 4, according to EDREAMS, on November 10, 2020 (...) an email was sent to the address A.A.A.. However, November 10, 2020 is not the date on which the claimant sent the email, which was sent on November 16, 2020. November 10, 2020 is the date of the letter attached to the email sent on November 16, 2020.

- Regarding point 5, EDREAMS acknowledges that one of its agents responded to the claimant's email, therefore the claimant's request reached EDREAMS. However, in the response sent to the claimant dated October 17, 2022, it states that it has no record of its receipt: "...we have searched in our systems and, unless we are mistaken, we have not found the two letters attached to your submission to the AEPD that you indicate were sent by your lawyer."

- Regarding points 8 and 9, EDREAMS recounts the payment, cancellation, and refund of the charge for the claimant's Prime subscription. These statements are made without providing any evidence to substantiate these circumstances.
- Regarding points 12 and 13, in which EDREAMS expresses the impossibility of identifying the claimant, it should be noted that, regardless of whether the email provided by this Agency was not that of the claimant but of the person who sent their request for the exercise of the right of access, EDREAMS had the name and surname of the claimant, as well as their reservation number, therefore at

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Based on this information, access to the data of the claiming party could have been obtained, including their email (***EMAIL.4). Therefore, there is no reason for the request to exercise the right of access not to have been properly addressed, unlike what was done by EDREAMS in the response sent on October 17, 2022, which forwarded the reservation data, with the following text: “[...] In your case, we have not found any information in our systems related to the email address ***EMAIL.3. Regarding the reservation locator no. ***RESERVA.1, associated with the email address ***EMAIL.3 (provided at the time of purchase) [...]”

For all the above reasons, this allegation is dismissed.

“SECOND. - ON THE PROCEDURE FOR ATTENDING TO THE EXERCISE OF RIGHTS AT THE TIME OF THE EVENTS”

EDREAMS states that it has an official channel, the Privacy Form, as an appropriate means through which any interested party can exercise their rights, and that the email to which the claiming party directed their request to exercise the right of access was not the appropriate means; although EDREAMS had a planned escalation process, it was not utilized by the employee, as stated by EDREAMS itself: “Although this process was clearly defined, the agent did not proceed with it, and furthermore, in response to the second email received, they did not take any action.”

In response to this allegation, the existence of a “Privacy Form,” through which EDREAMS centralizes the management of the exercise of rights, should not prevent a request to exercise rights regarding personal data protection from being addressed when presented through other means, as is the case here, where the claiming party directed their request to the email (A.A.A.). As EDREAMS itself states in its allegations, Article 12.2 of the LOPDGDD provides that: “The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party opted for another means.” (the underlining is ours).

That requests to exercise the right of access to personal data are not limited to requests made through a specific channel is a criterion shared with the European Data Protection Committee (hereinafter, EDPB), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation (as attributed to it by Article 70 of the GDPR), on March 28, 2023, adopted guidelines to provide a clear and transparent basis for the exercise of the right of access (Guidelines 01/2022 on data subject rights - Right of access).

In section 3.1.2 (paragraphs 52 to 57) of the aforementioned Guidelines

[https://edpb.europa.eu/system/files/2023-](https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf)

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04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf), it states the following regarding the requirements for the request to exercise the right of access (unofficial translation):

“52. As previously noted, the GDPR does not impose any requirements on data subjects regarding the

form of the request for access to personal data. Therefore, in principle, there are no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the controller.

53. The EDPB encourages controllers to provide the most appropriate and user-friendly communication channels, in accordance with Article 12, paragraph 2, and Article 25, to enable the data subject to make an effective request. However, if the data subject makes a request through a communication channel provided by the controller that is different from the one indicated as preferred, the request will generally be considered effective, and the controller must process that request. Consequently, controllers must make all reasonable efforts to ensure that the exercise of the data subject's rights is facilitated (for example, if the data subject sends the request to an employee who is on leave, an automatic message informing the data subject about an alternative communication channel for their request could be a reasonable effort).

54. It should be noted that the controller is not obliged to act in response to a request sent to a random or incorrect email address (or postal address) not directly provided by the controller, or to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the controller has provided an appropriate communication channel that can be used by the data subject.

55. The controller is also not obliged to respond to a request sent to the email address of its employees who cannot participate in processing requests related to the rights of data subjects (e.g., drivers, cleaning staff, etc.). Such requests will not be considered effective if the controller has clearly provided the data subject with the appropriate communication channel. However, if the data subject sends a request to the controller's employee who deals with the data subject's matters on a daily basis (single point of contact for a client, such as, for example, personal account manager), that contact should not be considered random, and the controller must make all reasonable efforts to process that request in a way that it can be redirected to the point of contact and respond within the timeframes established by the GDPR.

56. Nevertheless, the EDPB recommends, as a good practice, that controllers introduce, as far as possible, mechanisms to improve internal communication among employees regarding requests received by those who may not be competent to handle such requests, in order to facilitate the exercise of the data subjects' rights.

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57. The date of receipt of the request by the data controller generally activates the one-month period for the data controller to provide information on the measures taken in response to a request, in accordance with Article 12, paragraph 3 of the GDPR. The EDPB considers it good practice for data controllers to confirm receipt of requests in writing, for example, by sending emails (or information by mail, if applicable) to the requesting individuals, confirming that their requests have been received and that the one-month period runs from day X to day Y" (the underlining is ours).

These criteria determine a broad interpretation regarding the acceptance of requests for the exercise of the right of access directed by a data subject to the data controller. As a general rule, the request for the exercise of the right of access to personal data must be considered effective, so data controllers must make all reasonable efforts to ensure that the exercise of the rights of data subjects is facilitated. The complainant sent the request to an email address (November 16 and 19, 2022) belonging to EDREAMS, specifically to its customer service (A.A.A.). This service cannot be understood as excluded from the obligation to address requests for the exercise of rights made by EDREAMS customers, whether directly or by forwarding to the corresponding unit. According to paragraph 55 of Guide 01/2022, the data controller is not obliged to respond to a request sent to the email address of its employees who cannot participate in the processing of requests related to the rights of data subjects, such as drivers or cleaning staff. However, a department whose activity is public attention, such as the customer service of EDREAMS, which performs functions involving the processing of

personal data of citizens, cannot be excluded from the obligation to address requests from its customers in the exercise of the right of access to their personal data. Thus, EDREAMS itself, as explained in its SECOND allegation, has internal processes for the customer service team to manage requests for the exercise of rights in data protection, which were not applied to the request made by the complainant: "...For all these reasons, the agent acted manifestly against the instructions provided by EDREAMS not only through implemented procedures but also through training and periodic awareness actions carried out."

The negligent action of the employee in addressing the request for the exercise of the right of access does not exempt EDREAMS from liability. The company's responsibility in the sanctioning field for the negligent action of an employee that constitutes a breach of data protection regulations has been confirmed by the jurisprudence of the Supreme Court. In this regard, it is worth mentioning the Supreme Court Judgment No. 188/2022 (Contentious Chamber, Section 3), dated February 15, 2022 (rec. 7359/2020), whose Fourth Legal Basis states: "The fact that it was the negligent action of an employee does not exempt her from responsibility as the person in charge of the proper use of the security measures that should have guaranteed the adequate use of the designed data registration system. As we already stated in STS No. 196/2020, dated February 15, 2021 (rec. 1916/2020), the data controller is also responsible for the actions of its employees and cannot excuse itself based on their diligent actions."

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separately from the actions of its employees, but rather it is the "culpable" actions of these employees, resulting from the violation of existing security measures, that underpins the company's liability in the sanctioning sphere for "own" acts of its employees or officials, not of third parties."

The judgment continues to argue about the liability of legal entities in our legal system: "...It simply happens that, given that direct liability of legal entities is admitted in our Administrative Law, which therefore recognizes their capacity to infringe, the subjective element of the infringement is manifested in these cases differently than it is for natural persons, so that, as the constitutional doctrine we have previously mentioned indicates - SsTC STC 246/1991, of December 19 (F.J. 2) and 129/2003, of June 30 (F.J. 8) - the direct reproachability derives from the legal interest protected by the norm that is infringed and the necessity for that protection to be truly effective and from the risk that, consequently, the legal entity subject to compliance with that norm must assume." (the underlining is ours).

For all the above reasons, this allegation is dismissed.

"THIRD. - ON THE COMPLIANCE WITH THE CONTENT OF ARTICLE 15 RGPD BY EDREAMS

In this allegation, EDREAMS considers that it has duly responded to the request for the exercise of the right of access made by the claiming party.

However, in a document issued by EDREAMS dated June 8, 2022, sent in response to the information request made by this Agency, it states: "Due to the configuration of our systems, we can only allow search patterns by date or by email address; since we do not have the latter, we have been unable to make that verification... WE REQUEST

1. That the claimant provide the identifying data of the email address with which the reservation was made..."

On October 21, 2022, EDREAMS stated: "Upon receiving the necessary information to address this information request from this Agency (with the necessary identifying data for us of (...)) on October 6, 2022 (registration number ***REGISTRO.3), we immediately proceeded to verify that (...) purchased with EDREAMS through the website XXXXXX on May 14, 2019, and through which they registered for the Prime service (EDREAMS subscription program), paying 74.99 EUR with the purchase of their reservation and obtaining an immediate discount of -59.70 EUR on their trip (see image 1 and Annex 2 - Copy of the Contract or user license that the claimant had to accept to register for their service)." In the image following this text, as can be verified in the image reproduced in point 4 of the Proven Facts Eighth, the email address of the claiming party "****EMAIL.1" is recorded, so, having the email address

of the claiming party, EDREAMS, according to its own statements, had the necessary data to carry out the search for the claiming party's data in its files.

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Furthermore, the written submission from EDREAMS dated October 21, 2022, continues in response to the claimant: "We would also like to emphasize that we have searched our systems and, unless we are mistaken, we have not found the two letters attached to your submission to the AEPD that your lawyer indicated were sent to us. We have also not found any request for access to your data from your side through the privacy form on our website, and therefore, eDreams ODIGEO has been unable to respond to your request until today."

On June 7, 2022, this Agency had sent EDREAMS two documents from the claimant. In the first of these, dated November 10, 2020, the representative of the claimant makes a request to exercise the right of access regarding their represented party, and in the second, dated November 19, 2020, there is a reiteration of the request for a written response to the request.

Despite the initiation of the present procedure, the transfer of the request to exercise the right of access made by this Agency and the other circumstances that have been communicated to EDREAMS, it does not consider it appropriate to respond to the request in question. In the email sent by EDREAMS to the claimant on October 17, 2022, the response to the request to exercise the right of access is made based on a search regarding the email address of the person who sent the request, not on the data of the claimant: "...we have not found any information in our systems related to the email address ***EMAIL.3."

Consequently, there was no reason for EDREAMS not to attend to the request to exercise the right of access.

Instead, they sent the data associated with the booking locator no. ***RESERVA.1 as described in Proven Fact Ninth. In their response to the claimant on October 17, 2022, EDREAMS refers them to their privacy form: "We would like to remind you that, to exercise your rights regarding the protection of your data, you can submit the request through the form available in the Privacy Notice on our website, which is fully accessible and designed to facilitate the exercise of our customers' rights."

For all the above reasons, this allegation is dismissed.

"FOURTH. - CONTINUOUS IMPROVEMENT OF THE PROCESSES FOR EXERCISING RIGHTS AT EDREAMS"

The measures adopted by EDREAMS to ensure compliance by its employees with data protection regulations, without undermining their responsibility in the facts, along with the attempt to address the exercise of the right of access due to the information request made by this Agency, have been taken into account for the purpose of formulating the proposed sanction to be imposed.

For all the above reasons, this allegation is dismissed.

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"FIFTH. - ON THE SUITABILITY, PROPORTIONALITY, AND GRADATION OF THE SANCTION"

This allegation consists of various arguments, which are summarized and addressed below. According to EDREAMS:

1. "It has provided the CLIENT with the correct and sufficient information regarding the provisions of Article 15 of the GDPR and in response to the request for the right of access made by the CLIENT."

In response to this allegation, it should be noted that, as explained in the response to its THIRD allegation, EDREAMS did not properly address the request to exercise the right of access despite the initiation of the present procedure, the transfer of the request for the exercise of the right of access made by this Agency, and the other circumstances that have been brought to EDREAMS' attention.

Although the reservation data for reservation no. ***RESERVA.1, made by the complaining party, was sent, the search in the database with the email address ***EMAIL.3 had no reason for EDREAMS not to respond to the request for the exercise of the right of access regarding the email ***EMAIL.1. In addition to the reservation, according to Proven Fact One, the complaining party had been a holder of the Prime service (EDREAMS subscription), so their personal data should have been included in EDREAMS' database.

Furthermore, EDREAMS sent a response to the complaining party once the information request was made by this Agency.

2. "According to the conclusions of the preliminary investigation report, the AEPD recognizes that this is not a case in which there has been a recurrence regarding the same facts."

In this regard, it cannot be considered that the absence of an aggravating factor can mitigate the responsibility of the offender; thus, the Supreme Court has repeatedly stated that the absence of the aggravating factors of recurrence or reiteration does not constitute a mitigating factor, a doctrine established, among others, in the Supreme Court Judgment of July 19, 2016, Case Number: 1348/2016. In the National Court Judgment of May 5, 2021, Case Number 1437/2020, it is stated that: "On the other hand, it should be appreciated as a mitigating factor the non-commission of a previous infringement. Well, Article 83.2 of the GDPR establishes that the following circumstance must be taken into account for the imposition of the administrative fine, among others, the circumstance "e) any previous infringement committed by the controller or the processor." This is an aggravating circumstance; the fact that the prerequisites for its application do not exist means that it cannot be taken into consideration, but it does not imply or allow, as the plaintiff intends, its application as a mitigating factor."

Furthermore, there are records in this Agency's database of a series of sanctioning procedures initiated against EDREAMS (XXXXXXX, XXXXXXX, and XXXXXXX) in which resolutions have been issued sanctioning the failure to address the exercise of rights recognized by the GDPR, so the infringement subject to this...

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the procedure is not an isolated case, but rather a repeated infringing conduct that EDREAMS has committed.

3. "For this type of cases, the LOPDGDD provides for the opening of a rights protection procedure that does not have the status of a sanctioning procedure."

As motivated in the initiation agreement, the lack of attention to the exercise of the right of access constitutes an infringement of the GDPR, which grants supervisory authorities a series of corrective powers, among which is "...to impose a fine in accordance with Article 83..." (Article 58.2.i) of the GDPR). Since this is a cross-border case as provided in Article 4.23) of the GDPR, this Agency, as the lead supervisory authority, must comply with the mandate imposed in Article 60.1 of the GDPR, whereby: "The lead supervisory authority shall cooperate with the other concerned supervisory authorities in accordance with this Article, striving to reach a consensus." Therefore, after consulting the other concerned supervisory authorities regarding this case, the consensus reached through the draft decision, notified to EDREAMS on 01/03/2023, determines the need to open the present sanctioning procedure under the terms set forth in the aforementioned draft decision.

4. "Likewise, EDREAMS considers that in similar cases, EDREAMS was warned."

In response to this argument, the reply given in the previous section applies, regarding the sanctioning power that the GDPR attributes to the competent supervisory authority, and the legal assessment of the facts carried out by the interested authorities, ultimately consensually agreed upon through the approval of the draft decision prior to the initiation agreement of the present procedure.

According to Article 83.4 of the GDPR, in the case of companies, infringements shall be sanctioned with an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, so that, taking into account the turnover of EDREAMS collected in Background Sixth,

the amount of the sanction is far from the maximum amount allowed by that article.

Finally, it should be noted that the proportionality of the proposed sanctions has been justified both in the initiation agreement and in the present proposal for resolution.

For all the above reasons, this allegation is dismissed.

B) In relation to the allegations made regarding the proposal for resolution of the present sanctioning procedure, a response is provided according to the order presented by EDREAMS:

“FIRST.- REITERATION OF THE ALLEGATIONS PREVIOUSLY SUBMITTED.”

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In response to this allegation, it should be emphasized that each of the allegations to the initiation agreement made by EDREAMS had a substantiated response in the proposal for resolution, so this Agency reiterates its response to the allegations presented to the initiation agreement of the present sanctioning procedure.

For all the above reasons, this allegation is dismissed.

“SECOND.- ON THE CONTEXT AND DILIGENT ACTION OF EDREAMS TO ENSURE THAT THE EXERCISE OF RIGHTS WAS FACILITATED”

“2.1. Context: Effects of the COVID-19 pandemic on EDREAMS”

EDREAMS believes that the global pandemic context in which the request for the exercise of the right of access was made should be taken into account, with effects never experienced before, especially for the tourism industry in which this company operates, and considering the efforts made by it. However, in November 2020, when the complainant sent the request to EDREAMS, the negative effects of the pandemic on economic activity were considerably lower than those produced between March and April 2020. EDREAMS mentions a website where the news of an ERTE affecting 90% of its workforce is reported, but this news is dated March 2020. While the peak of workers in ERTE occurred in April 2020, with more than 3.5 million workers, by November 2020 it had reduced to less than 750,000 (Source: <https://www.lamoncloa.gob.es/serviciosdeprensa/notasprensa/inclusion/Paginas/2020/021220-ertes.aspx>), so we cannot consider that the data from March is extrapolable to November 2020.

Moreover, the first email from the complainant, sent on November 16, 2020 (Proven Fact Second), was responded to by EDREAMS the following day, on November 17, 2020 (Proven Fact Third). The reduction of workers due to the ERTE might have justified a delay in the response, but this was not the case, as there was no delay in responding to the first email sent by the complainant, so the lack of available personnel to carry out the corresponding tasks cannot be the reason why the request was not properly attended to.

“2.2. Diligent action of EDREAMS to ensure that the exercise of Rights was facilitated”

In this section, EDREAMS states that “it had made reasonable efforts given the circumstances, highlighting the following in relation to the exercise of the right carried out by (...),” subsequently enumerating a series of measures adopted to facilitate the exercise of rights of its clients. Therefore, EDREAMS believes that it has made reasonable efforts to ensure that the exercise of the rights of the data subjects is facilitated, without being required to do so.

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obligation of result, nor the imposition of objective liability.

Specifically, regarding the circumstances of the case, EDREAMS states: “[...] it was technically impossible (not just disproportionate) to expect that EDREAMS could have adopted a measure that would have allowed verifying that the agent did not escalate a request for the exercise of rights that

was not identified as such either in the subject, body, or title of the attachment sent in the communications of (...) dated November 16 and 19, 2020.”

In response to this allegation, it should be noted that the Second Established Fact contains the content of the letter attached to the email sent by the claimant on November 16, 2020. This document clearly refers to Article 15 of the GDPR (unofficial translation, original in German):

“[...] On behalf of my client, I request information in accordance with Article 15 of the GDPR regarding whether you have stored personal data related to my client. Regarding this data stored by you, my client has the right to receive information about it. Therefore, I must ask you to provide me with the following information in accordance with Article 15, paragraph 1, of the GDPR: [...]”

Therefore, it is not true that the request for the exercise of the right of access was not properly identified.

We cannot share EDREAMS' arguments regarding the disproportionate need to have adopted a measure that would have allowed verifying that the agent did not escalate a request for the exercise of rights, considering that the request was made repeatedly by the claimant, remaining unanswered in the second email. In the response to EDREAMS' SECOND allegation regarding the initiation agreement, it was already established that sending a request for the exercise of the right of access to a customer service must be considered effective according to the criteria established by the European Data Protection Board in its 01/2022 on the rights of data subjects - the right of access.

Furthermore, compliance with the obligations of the GDPR is an internal matter for those bound by it. As already indicated in the response to its FIFTH allegation regarding the initiation agreement, there are a series of sanctioning procedures initiated against EDREAMS (XXXXXXXXXX, XXXXXXXXXXXX, and XXXXX-XXXX) recorded in the database of this Agency, in which a resolution has been issued sanctioning the failure to address the exercise of rights recognized by the GDPR, so the infringement subject to this procedure is not an isolated case, but rather a repeated infringing behavior that EDREAMS has committed.

For all the above reasons, this allegation is dismissed.

“THIRD.- ON THE INADMISSIBILITY OF OBJECTIVE LIABILITY”

In this allegation, EDREAMS rejects the application of the Supreme Court Judgment No. 188/2022 (Contentious Chamber, Section 3), dated February 15, 2022 (rec. 7359/2020) concerning the factual scenario outlined in the

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the same (a security breach), while in this case EDREAMS attributes the lack of attention to the request for the exercise of the right of access to human error and, nevertheless, does understand the applicability of the reasoning of this judgment regarding the inadmissibility of objective liability. Finally, it relates these arguments to those already raised in the previous allegation: the existence of a pandemic, the content of the emails did not indicate that they were related to the exercise of rights, and all the measures and procedures adopted by EDREAMS regarding the attention to rights.

In response to this allegation, it should be noted that the Judgment of the Supreme Court is brought up in relation to the liability of EDREAMS for the negligent actions of its employees, without, according to the doctrine established by said judgment, the data controller being able to excuse itself based on its diligent actions separately from the actions of its employees. Likewise, said Judgment establishes the requirements for holding legal entities liable for acts committed by their employees based not on objective liability as EDREAMS refers, but on “the direct reproachability that derives from the legal good protected by the norm that is infringed and the necessity for such protection to be truly effective.” All of this has already been substantiated in the response to the SECOND allegation to the initiation agreement.

Regarding the consideration that the infringement was committed due to “human error,” which EDREAMS identifies as “not having escalated the inquiry for evaluation by the competent team, as has been evidenced in the allegations presented to the initiation agreement of the sanctioning procedure,”

regarding EDREAMS's actions in the lack of attention to the request for the exercise of the right of access, it should be emphasized that:

First. The request was not attended to despite the fact that the representative of the complaining party reiterated their request (Proven Facts Second and Fourth), with no type of control over this type of communication by EDREAMS.

Second. EDREAMS has no record of having received any request for the exercise of the right of access, as it states in the response sent to the complaining party: (Proven Fact Ninth): "Furthermore, we would like to emphasize that we have searched our systems and, unless we are mistaken, we have not found the two letters attached to your writing to the AEPD that your lawyer indicated were sent to us. We also have not found any request for access to your data from you through the privacy form on our website, thus preventing eDreams ODIGEO from responding to your request until today.

Third. In the response sent to the complaining party, EDREAMS refers them to its form for responding to the request for the exercise of the right of access. In the letter sent to the complaining party, it states: "We would like to remind you that, to exercise your rights regarding the protection of your data, you can submit the request through the form available in the Privacy Notice on our website, which is completely accessible and designed to facilitate the exercise of our clients' rights."

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Fourth. EDREAMS argues that it cannot find the personal data of the claimant unless it is through their email address; it cannot identify its customers using other personal data, such as first and last names (Proven Fact Seventh). In the response to the information request sent by this Agency, it is stated (page 61 of the file): "Immediately, we proceeded to diligently search for (...) in our systems. This is the preliminary phase to address any claim in which the customer's email is not provided, which is our unique customer identifier, according to our terms of use... For all these reasons, and because it was exceptionally impossible to determine (...) with certainty after the appropriate search."

Consequently, taking into account all these circumstances, the lack of attention to the request made by the claimant is not due to an "isolated human error" as argued by EDREAMS, but there is culpability for the lack of diligence required of EDREAMS in the proper processing of the exercise of the right of access to their personal data, for which EDREAMS has a procedure in place through a form, but this does not exempt it from the obligation to address other requests directed to it without the use of said form.

Thus, section 55 of the Guidelines 01/2022 of the EDPB, regarding the rights of data subjects - the right of access, that department whose activity is public attention, such as the customer service of EDREAMS, which performs functions that involve the processing of personal data of citizens, cannot be excluded from the obligation to respond to requests from its customers in the exercise of the right of access to their personal data.

Finally, as already mentioned in the proposed resolution, there are a series of sanctioning procedures initiated against EDREAMS (XXXXXXX, XXXXXXX, and XXXXXX) in the database of this Agency, in which a resolution has been issued sanctioning the lack of attention to the exercise of rights recognized by the GDPR, so the infringement subject to this procedure is not an isolated case, but rather a repeated infringing behavior that EDREAMS has committed.

For all the above, this allegation is dismissed.

"FOURTH.- ON THE INADMISSIBILITY OF EDREAMS' NON-COMPLIANCE WITH ARTICLE 15 GDPR"

EDREAMS claims that it has duly responded to the request for the exercise of the right of access, providing the copy "sent by email to (...) on October 17, 2022 (and not by phone, as indicated by (...)..." To adequately identify the claimant, EDREAMS points out the need to obtain a piece of information that had not been previously provided and that it considers unequivocal: the email with which the claimant made the reservation. Only when EDREAMS had access to the reservation number and the email of the person who made the reservation could it access said email and correctly and

unequivocally identify (...). According to EDREAMS, the AEPD concludes that the content sent to (...) on October 17, 2022, is insufficient to understand that the request for the right of access was not addressed even at that time.

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In response to this allegation, it should be noted that, as evidenced in the First Established Fact, the annual subscription to the Prime service provided by EDREAMS was made using the email address of the claiming party ***EMAIL.4. However, despite having the email of the claiming party, in the response sent by EDREAMS, as stated in the Ninth Established Fact, the following is said: “In this case, we have not found any information in our systems related to the email address ***EMAIL.3.” Subsequently, the search is not conducted using the email of the claiming party but rather with that of the person who submitted the request to exercise the right of access, and this is noted in the reservation data provided to the claiming party (unofficial translation, original in German): “Regarding the reservation locator no. ***RESERVA.1, associated with the email address ***EMAIL.3 (provided at the time of purchase), we have the following information:” (Last paragraph on page 144 of the file). In the comparison of the content of the response to the exercise of the right of access delivered on October 17, 2022, with the content of Article 15 of the GDPR provided by EDREAMS as Annex 2 to the allegations, the email “***EMAIL.4” is indeed mentioned, but not in the original response sent to the claiming party, according to the documentation submitted by EDREAMS in the file (pages 143 to 155). Consequently, it cannot be determined that the data sent by EDREAMS corresponds to the claiming party, and therefore, their request to exercise the right of access cannot be considered addressed. For all the above reasons, this allegation is dismissed.

“FIFTH.- ON THE SUITABILITY, PROPORTIONALITY, AND GRADATION OF THE SANCTION”

In this allegation, EDREAMS summarizes the arguments presented in the previous allegations: the request to exercise the right was addressed when they could identify (...), the exceptional circumstances caused by the pandemic compromised the operations of the tourism sector, the claiming party was unclear in exercising their right for various reasons, there is no recurrence by EDREAMS, and finally, that the substance of the matter exclusively concerns the alleged lack of attention to a request to exercise rights, for which the LOPDGDD provides for the opening of a rights protection procedure that does not have the status of a sanctioning procedure.

The grounds for this allegation have been duly addressed in the previous allegations and are specified here as a summary:

- 1.- EDREAMS did not address the request to exercise the right of access of the claiming party but sent the data related to the reservation locator no. ***RESERVA.1, associated with the email address ***EMAIL.3.
- 2.- The reason for the lack of attention to the request to exercise the right of access cannot be the lack of staff due to the exceptional situation caused by COVID-19, when the response to the first email sent by the claiming party was made the day after it was sent, so the lack of available staff to perform the corresponding tasks cannot be the reason why the request was not duly attended to.
- 3.- The customer service of EDREAMS, which performs functions involving the processing of personal data of citizens, cannot be exempted from the obligation to respond to requests from its clients in exercising the right of access to their personal data.
- 4.- The infringement subject to this procedure, the lack of attention to a request to exercise the right of access, is not an isolated case. In the database of this Agency, there are a series of sanctioning procedures initiated against EDREAMS (XXXXXXX, XXXXXXX, and XXXXXXX) in which a resolution has been issued sanctioning the lack of attention to requests to exercise rights recognized by the GDPR. In response to their allegation THIRD, they enumerate the issues that reveal the poor management of the request submitted by the claiming party.
- 5.- The violation of Article 15 of the GDPR due to the lack of attention to a request to exercise the right of access constitutes an infringement of that regulation. Article 58.2.i) of the GDPR grants control

authorities a series of corrective powers, among which is "...to impose a fine in accordance with Article 83..." This Agency, as the main control authority in a cross-border case, must comply with the mandate imposed in Article 60.1 of the GDPR, which states: "The main control authority shall cooperate with the other interested control authorities in accordance with this article, striving to reach a consensus." Upon consulting the other interested control authorities regarding this case, the consensus reached through the draft decision, notified to EDREAMS on 01/03/2023, determined the need to open the present sanctioning procedure under the terms set forth in the aforementioned draft decision.

For all the above reasons, this allegation is dismissed.

IV

Right of access of the data subject

Article 15 "Right of access of the data subject" of the GDPR states:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed and, where that is the case, the right of access to the personal data and to the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

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c) the recipients or categories of recipients to whom the personal data have been communicated or will be communicated, in particular recipients in third countries or international organizations;

d) where possible, the intended retention period for the personal data or, if not possible, the criteria used to determine that period;

e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) when the personal data have not been obtained from the data subject, any available information as to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others."

In this case, on November 16, 2020, the complainant requested EDREAMS to exercise the right of access to their personal data via email, sent to the email address "A.A.A." This email address is provided by EDREAMS to its customers as a contact address, as can be verified in the "Terms and Conditions of Opodo.de" submitted by EDREAMS in response to the information request made by this Agency. In EDREAMS' response to the request made by the complainant, it is indicated that they should contact a customer service department phone number, and the phone numbers for Germany, Switzerland, and Austria are provided. On November 19, 2020, the complainant again requested EDREAMS to address their request via email, without receiving any response.

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IV

Classification and qualification of the infringement of Article 15 of the GDPR

In accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that EDREAMS has not duly addressed the exercise of the right of access within one month from the receipt of the request made by the complainant.

The known facts constitute an infringement of Article 15 of the GDPR, attributable to EDREAMS, classified under Article 83.5 of the GDPR, which stipulates the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) ...

b) the rights of the data subjects under Articles 12 to 22;

(...)”

For the purposes of the limitation period for infringements, the infringement attributed shall be subject to a three-year limitation period, in accordance with Article 72.1.k) of the LOPDGDD, which classifies the following conduct as very serious:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) ...

k) The obstruction or hindrance or the repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 (...).”

V

Sanction for the infringement of Article 15 of the GDPR

This infringement may be sanctioned with a fine of up to €20,000,000 or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

Furthermore, it is considered appropriate to graduate the sanction to be imposed in accordance with the following criteria established in Article 83.2 of the GDPR:

Circumstances of Article 83.2 of the GDPR considered as mitigating:

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- Any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement (section k): A response was provided to the request for access from the claiming party on October 20, 2022, after receiving the information request from the AEPD that was notified on October 11, 2022. Furthermore, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established in section 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

As an aggravating factor:

- The connection of the infringer's activity with the processing of personal data (section b): The activity carried out by EDREAMS regularly requires the processing of personal data of its clients.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 15 of the GDPR, allows for the imposition of a sanction of €10,000 (ten thousand euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the adjustment of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on VACACIONES EDREAMS, S.L., with NIF B61965778, for an infringement of

Article 15 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €10,000 (ten thousand euros).

SECOND: TO NOTIFY this resolution to VACACIONES EDREAMS, S.L.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

In accordance with the provisions of Article 60.7 of the GDPR, this resolution will be communicated, once it is final, to the interested supervisory authorities and the European Data Protection Board.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered concluded.

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